

does not meet this high threshold. Furthermore, the FAC fails to plead a basis for vicarious liability. An employer is not liable for an employee's intentional torts unless the conduct was within the scope of employment and foreseeable (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal. 4th 291); the FAC provides no nexus between the manager's alleged actions and the enterprise of Tigre USA.

As to *Retaliation and Wrongful Termination* (5th & 10th COA), Plaintiff fails to establish a prima facie case for retaliation or wrongful termination. A necessary element for these claims is a "causal link" between a protected activity and an adverse employment action (*Akers v. County of San Diego* (2002) 95 Cal.App.4th 1441). The FAC fails to identify who terminated the Plaintiff, the date of termination, or facts showing the termination was motivated by Plaintiff's reports of misconduct.

The following causes of action are sustained due to the absence of a legal basis for relief in this forum:

CAUSE OF ACTION	LEGAL DEFICIENCY	STATUTORY/CASE LAW BASIS
3rd & 7th (Negligence/Workers' Comp)	Exclusive Remedy Rule; claims must be heard by the WCAB	Labor Code § 3602
4th (Unsafe Work Environment)	No private right of action (governed by Cal/OSHA)	Labor Code §§ 6300, 6401
6th (HIPAA)	No private right of action in State Court; must be filed with the Office for Civil Rights (OCR)	45 CFR Parts 160/164
8th (Lost Wages)	Derivative of failed employment/negligence claims	Labor Code § 3706
9th (Pain and Suffering)	Improperly pleaded as a COA (it is a measure of damages)	Civil Code § 3333

Regarding the Eighth Cause of Action, the claim fails because Tigre USA had no duty to secure workers' compensation insurance for an individual who was not its employee.

Plaintiff has filed no opposition to the Demurrer. Under California Rules of Court, rule 8.54(c), a failure to oppose a motion may be deemed a consent to the granting of said motion. Applying the ruling in *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20, the Court considers the lack of opposition an admission that the motion is meritorious and a waiver of any arguments in support of the pleading.

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CASE #	CASE NAME	HEARING NAME
CVRI2604622	CHIZO VS CHIZO	DEMURRER

Tentative Ruling: Hearing continued to 9/29/26.